

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF TARASENKO AND OTHERS v. RUSSIA

(Applications nos. 51391/21 and 30 others –
see appended list)

JUDGMENT

STRASBOURG

7 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Tarasenko and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further complaints under Article 6 of the Convention alleging various aspects of unfairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 7 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	51391/21 22/09/2021	**Ivan Nikolayevich TARASENKO** 1998	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention of 7 days	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 11.40 p.m. on 02/02/2021 until 2.00 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	51907/21 30/09/2021	**Zakhar Dmitriyevich ALEKSEYEV** 2001	Vladislav Vladimirovich Kosnyrev Syktyvkar	Rally "Free Navalnyy" Syktyvkar 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Komi Republic 31/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.30 p.m. until 6.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
3.	51910/21 23/09/2021	**Ivan Albertovich OVECHKIN** 1985	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention of 8 days	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.45 p.m. on 31/01/2021 until 6.00 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
4.	51911/21 30/09/2021	**Vitaliy Yevgenyevich PASTERYUK** 1994	Vladislav Vladimirovich Kosnyrev Syktyvkar	Rally "Free Navalnyy" Syktyvkar 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Supreme Court of the Komi Republic 31/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	51953/21 28/09/2021	**Maksim Olegovich SPICHAK** 1987	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 31/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	51972/21 28/09/2021	**Aleksey Gennadiyevich CHELMAKIN** 1977	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	detention of 5 days	Krasnodar Regional Court 31/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.00 p.m. on 23/01/2021 until 4.00 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed	5,000

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								on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
7.	51976/21 28/09/2021	**Anna Yuryevna PRIDACHINA** 1992	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 31/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	51981/21 28/09/2021	**Karen Sergeyevich LOBYAN** 1998	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Krasnodar Regional Court 31/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	51996/21 13/10/2021	**Petr Alekseyevich GOLIKOV** 1994	Yelena Yuryevna Pershakova Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.20 p.m. on 31/01/2021 until 1.11 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	52234/21 30/09/2021	**Aleksey Aleksandrovich MICHURIN** 1987	Aleksandr Vasilyevich Popkov Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Krasnodar Regional Court 31/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 4.00 p.m. on 23/01/2021 until 6.30 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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11.	52266/21 11/10/2021	**Valentina Nikolayevna PETROVA** 1971	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Pskov Regional Court 12/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	52272/21 07/10/2021	**Klim Sergeyevich MURATOV** 1986	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 20/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
13.	52278/21 01/10/2021	**Gelnara Rafikovna SAKHABIYEVA** 1971	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 14/04/2021		3,500
14.	52284/21 11/10/2021	**Ivan Dmitriyevich DOROZHKIN** 1987	Tatyana Georgiyevna Martynova Pskov	Rally "Free Navalnyy" Pskov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Pskov Regional Court 12/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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15.	52319/21 10/10/2021	**Anna Vladimirovna NIKOLAYEVA** 1975	Memorial Human Rights Centre Moscow	Rally against tree felling Moscow 27/12/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 12/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.30 p.m. on 27/12/2020 until 2.30 a.m. on 29/12/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	52353/21 05/08/2021	**Khristina Dzhonson RAMIRES** 1990	Aleksey Viktorovich Tsvetkov Vladimir	Rally to ensure access of doctors to Mr A. Navalnyy in detention Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	detention of 10 days	Vladimir Regional Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 07/04/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
17.	52388/21 05/08/2021	**Olga Ivanovna SHASHKOVA** 1959	Aleksey Viktorovich Tsvetkov Vladimir	Rally to ensure access of doctors to Mr A. Navalnyy in detention Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	20 hours of community work	Vladimir Regional Court 15/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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18.	52474/21 30/09/2021	**Andrey Markovich SOROCHKIN** 1962	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 2 of CAO	fine of RUB 30,000	Nizhniy Novgorod Regional Court 07/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.15 p.m. on 31/01/2021 until 7 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	52517/21 09/10/2021	**Dmitriy Erikovich IONOV** 1987	Anna Yevgenyevna Bochilo Barnaul	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 02/02/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	52557/21 01/10/2021	**Ilnur Rafisovich FATKHULLIN** 2002	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 28/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
21.	52561/21 01/10/2021	**Ayrat Rustemovich KHALILULLIN** 1996	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 11,000	Supreme Court of the Tatarstan Republic 05/05/2021		3,500

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22.	52563/21 01/10/2021	**Ramil Rustamovich KHAYRUTDINOV** 1975	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 05/05/2021		3,500
23.	52568/21 01/10/2021	**Dinar Miyassarovich YUNUSOV** 1993	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 05/05/2021		3,500
24.	52573/21 01/10/2021	**Pavel Vitalyevich YELKOV** 2001	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 07/04/2021		3,500
25.	52580/21 01/10/2021	**Anna Vitalyevna MINIKAYEVA** 1993	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 07/04/2021		3,500

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26.	52586/21 01/10/2021	**Kamilya Danilovna ZIATDINOVA** 1997	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 07/04/2021		3,500
27.	52594/21 01/10/2021	**Timur Kakhramanovich ABDURAKHMANOV** 1990	Danil Ilnurovich Nurgaleyev Kazan	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 07/04/2021		3,500
28.	54453/21 14/10/2021	**Yegor Igorevich PETROV** 1996	Aleksey Sergeyevich Lapuzin Samara	Rally "Free Navalnyy" Samara 21/04/2021	article 20.2 § 8 of CAO	detention of 28 days	Samara Regional Court 28/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 21/04/2021 for compiling an offence report	6,000
29.	54464/21 15/10/2021	**Sergey Olegovich BORISOV** 1998	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.20 p.m. on 31/01/2021 until 2.40 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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30.	54476/21 22/10/2021	**Timur Agilyevich MAMEDOV** 1999	Aleksey Alekseyevich Vasilyev Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings .	3,500
31.	54532/21 14/10/2021	**Nikolay Valeryevich SEROV** 1999	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.